

25SMCV01427 25SMCV01427

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-14

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Case Number: 25SMCV01427 Hearing Date: July 14, 2026 Dept: P

Tentative

Ruling

Phoebe

Eskovitz, et al. v. Backroads, Case no. 25SMCV01427

Backroads'

Motion for Stay of Execution

Hearing

Date: July 14, 2026

Motion

for Stay of Execution

Plaintiffs

Phoebe and Katherine Eskovitz sue Defendant Backroads for negligence, alleging that Backroads' misrepresentations in its marketing materials and understaffing caused Phoebe's injuries when she fell from her bicycle on a major roadway while on a Backroads bike tour in Mallorca, Spain. (Complaint, ¶ 58.)

On March

20, 2025, Plaintiffs filed the complaint. This case was initially assigned to Judge Jay Ford III in Department O.

On July 1,

2025, Backroads moved to compel arbitration.

On

September 11, 2025, Backroads moved for a protective order staying discovery until the motion to compel arbitration was decided. Backroads also separately moved for a discovery stay.

On

December 2, 2025, the Court denied Backroads' motion to compel arbitration, mooting its motion for a protective order and motion to stay.

On

December 22, 2025, Backroads appealed the Court's ruling on its Motion to Compel Arbitration.

On

December 31, 2025, Backroads moved to stay this case pending the interlocutory appeal, or for an order staying discovery pending the interlocutory appeal. On April 30, 2026, Plaintiffs filed opposition. On May 6, 2026, Backroads replied.

On January

1, 2026, as part of an inventory transfer, this case was transferred to Judge Bradley S. Phillips in Department O.

On

February 3, 2026, Plaintiffs filed a motion to compel further responses to Plaintiff's form interrogatories, special interrogatories, requests for production of documents and requests for admission.

On May 12,

2026, Judge Bradley S. Phillips recused himself from this case pursuant to Code Civ. Proc. 170.1 and this case was re-assigned to Judge David W. Swift in Department P.

Backroads

moves to stay this case pending its interlocutory appeal of the Court's ruling denying Backroads' Motion to Compel Arbitration under Code Civ. Proc. §§ 916(a), and 1281.4. Backroads argues that though a stay pending interlocutory appeal is not as of right under California law, the Court should nonetheless stay this matter pending its interlocutory appeal because prior California procedure and federal law stayed actions pending interlocutory appeal. Backroads argues that California's statute allowing cases to proceed while an

interlocutory appeal is pending is preempted by the Federal Arbitration Act because it discriminates against arbitration. (Id. at p. 9-10.) Backroads argues that a stay will not prejudice plaintiffs. (Id. at p. 11.)

In opposition, Plaintiffs argue that a stay would cause them prejudice by further delaying this action and requests sanctions under Code Civ. Proc. § 2025.420(h).

In reply, Backroads argues that its interlocutory appeal is likely to be successful on the merits and that the delays are the result of Plaintiffs' refusal to arbitrate this dispute.

Statutory

Stay

Code Civ.

Proc. § 916(a) stays trial court proceedings on matters affected by the appeal. Code Civ. Proc. § 1281.4 stays actions after the Court has ordered arbitration. Backroads acknowledges that there is no stay pending interlocutory appeal as of right but nonetheless requests a stay pursuant to the Court's power under the Discovery Act and its inherent powers to control the proceedings before it. (Motion to Stay, pp. 5-6.) Until and unless a law is invalidated, it is binding on this Court. Under California law, cases are not stayed pending interlocutory appeal. (Code Civ. Proc. § 1294(a).)

Discretionary

Stay

When

statutes do not call for an automatic stay pending appeal, the trial court has the power to issue a discretionary stay. (Code civ. Proc. §§ 918, 923.) "The factors regulating the issuance of a stay are generally the same: (1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; (2) whether the applicant will be irreparably injured absent a stay; (3) whether issuance of the stay will substantially injure the other parties interested in the proceeding; and (4) where the public interest lies." (Daly v. San Bernardino County Bd. Of Supervisors (2021) 11 Cal.5th 1030, fn. 13, citing Hilton v. Braunskill, (1987) 481 U.S. 770, 776.)

Backroads

has not made a showing that it is likely to succeed on appeal. On Backroads' motion to compel arbitration, Judge Ford found both that Backroads had not provided admissible evidence showing that Katherine Eskovitz signed the arbitration agreement and that the Plaintiffs met their burden to show that the agreement was unconscionable. (Minute Order (12/02/2025), p. 17.) Backroads has also not met its burden to show that it would be harmed if discovery were allowed to progress—Plaintiffs can seek discovery responses both before the Court and before an arbitrator. In addition, Backroads has not shown that a stay would not harm plaintiffs or that a stay is in the public interest. Fifteen months have already passed without meaningful discovery in this matter. As time passes, less evidence is available. Simply put, there is no reason to delay discovery any further in this matter.

Sanctions

Plaintiffs

request sanctions under Code Civ. Proc. § 2025.420(h), the mandatory sanctions provision for a party who unsuccessfully makes or opposes a motion for a protective order, unless the Court finds that the party acted with substantial justification or some other circumstance would make the sanction unjust. Backroads invoked the Discovery Act when moving for a stay. (Notice of Motion, p. 2.; Motion to Stay, p. 6.) Indeed, this motion could easily be interpreted as a motion for a protective order staying discovery pending appeal.

Considering

the totality of the circumstances, sanctions are appropriate. Backroads moved to stay this action despite clear California law to the contrary. Further, Backroads argued primarily that this case should be stayed because California law is preempted by the FAA, even after Judge Ford found that there was no enforceable arbitration agreement invoking the FAA. (Minute Order (12/02/2025), p. 15.) As such, the Court awards sanctions in an amount to be determined by supplemental declaration. The Court sets an OSC re discovery sanctions for July 31, 2026, at 9:00 a.m. Plaintiffs' fee declaration is due by July 17, 2026, Defendants' opposition is due by July 24, 2026 and any reply papers are due July 29, 2026.

Conclusion

Backroads'

Motion to Stay is DENIED and the Court sets as OSC re discovery sanctions for
July 31, 2026 at 9:00 a.m.